

No. 5.

A MEASURE passed by the National Assembly
of the Church of England.

To enable the Ecclesiastical Commissioners to
make additional provision for the Cure of
Souls in parishes in the Diocese of Sodor
and Man. [15th April 1930.]

Augmenta-
tion grants
extended to
the diocese
of Sodor and
Man.

1. As from the passing of this Measure the pro-
visions of the Ecclesiastical Commissioners Acts, 1840
to 1885, in relation to grants out of their Common Fund
for making additional provision for the Cure of Souls
in parishes where such assistance is most required,
and of the Ecclesiastical Commissioners (Provision for
Unbeneficed Clergy) Measure, 1928, shall extend to the
diocese of Sodor and Man.

Short title.

2. This Measure may be cited as the Ecclesiastical
Commissioners (Sodor and Man) Measure, 1930.

20 & 21 GEO. 5.

No. 6.

A MEASURE passed by the National Assembly
of the Church of England.

To establish a system of Pensions for Older
Incumbents, and for that purpose to amend
the Incumbents Resignation Acts, 1871 and
1887, and the Clergy Pensions Measures, 1926
to 1928. [4th June 1930.]

Older
incumbents'
pensions.

1.—(1) In this Measure the expression "older
incumbent" shall mean every incumbent of a benefice
and archdeacon the fifty-fifth anniversary of whose
birth occurred before the first day of January, nineteen
hundred and twenty-seven.

(2) Subject to the provisions of this Measure, every older incumbent who retires from his benefice or office on or after the appointed day, shall be entitled to receive during the remainder of his life a pension (in this Measure referred to as "an older incumbent's pension") to be provided, in manner laid down by this Measure, either

- (i) wholly under the Incumbents Resignation Acts, 1871 and 1887 (in this Measure referred to as "the Resignation Acts") as amended by this Measure; or
- (ii) partly under the Resignation Acts as so amended, and partly by the Church of England Pensions Board (in this Measure referred to as "the pensions authority"); or
- (iii) wholly by the pensions authority.

(3) The pensions authority shall at any time at the request of an older incumbent furnish him with an estimate of the amount of the older incumbent's pension to which he will become entitled upon his retirement.

2.—(1) On and after the appointed day the Resignation Acts shall continue to have effect but subject to the following modifications (that is to say):—

- (i) an older incumbent who desires to retire from his benefice under the provisions of the Resignation Acts shall give notice to the bishop and, if the bishop shall consent in writing to his so doing, shall make a representation to the pensions authority in the form contained in Part I of the First Schedule to this Measure, and such representation shall be substituted for the representation to the bishop provided for by the Resignation Acts;
- (ii) an older incumbent may assign as the ground of his desire to retire under the provisions of the Resignation Acts that he is incapacitated from the due performance of his duties either by permanent mental or bodily infirmity or by old age;
- (iii) the pensions authority shall, except in cases where by reason of the provisions of this

Amendment
of Incum-
bents
Resignation
Acts, 1871
and 1887.

Measure no commission under the Resignation Acts can be issued or is required, transmit the representation to the bishop with a view to the issue, if the bishop see fit, of a commission under the Resignation Acts;

- (iv) no commission shall be issued or pension allowed under the Resignation Acts in respect or out of the revenues of any benefice, the annual value of which does not in the opinion of the pensions authority exceed three hundred pounds;
- (v) subject to the provisions of this Measure, the amount of a pension allowed under the Resignation Acts shall be such a sum as—
 - (a) will not exceed the difference between the annual value of the benefice resigned and £300;
 - (b) will also not exceed one-third part of the annual value of the benefice resigned;
 - (c) will only be less than £175 in such cases and to such extent as may be necessary to give effect to sub-paragraphs (a) and (b);
- (vi) the declaration of the bishop declaring a benefice void subject to the payment of a pension under the Resignation Acts shall be in the form contained in Part II of the First Schedule to this Measure, and shall be signed in quadruplicate, and one copy thereof shall be transmitted by the bishop to the pensions authority;
- (vii) where upon the retirement of an older incumbent the union of the benefice from which he retires with another benefice, not being a benefice already subject to a pension under the Resignation Acts or to a charge under section twenty-seven of the Clergy Pensions Measure, 1926, will take effect pursuant to an Order in Council made before such retirement—
 - (a) the annual value of the united benefice shall for the purpose of sub-paragraph (a) of paragraph (v) of this subsection be substituted for the annual value of the benefice resigned;

(b) the amount of the pension allowed under the Resignation Acts shall be a charge on the revenues of the united benefice; and

(c) the declaration of the bishop declaring the benefice void shall undergo such modifications as the case may require;

(viii) any charge upon the revenues of a benefice or right to recover money as a debt from the incumbent thereof arising under a declaration of the bishop signed on or after the appointed day shall vest in the pensions authority in trust for the retired clerk concerned;

(ix) the pensions authority shall give notice to the Ecclesiastical Commissioners and to Queen Anne's Bounty of any charge upon the revenues of a benefice vested in the pensions authority under this Measure, and the Ecclesiastical Commissioners and Queen Anne's Bounty respectively shall in any case where the income of the benefice charged includes any augmentation, grant, payment in respect of tithe rent-charge or other moneys payable by the said Commissioners or Queen Anne's Bounty apply the same, if and so far as the pensions authority shall so require, in or towards satisfaction of such charge; and

(x) in any case where the annual value of the benefice resigned is less than £525, the expenses incurred by or with the sanction or by the direction of the pensions authority of carrying the provisions of the Resignation Acts into execution shall be defrayed by the pensions authority.

(2) The Resignation Acts shall also be amended and repealed for all purposes in manner and to the extent set out in the Third Schedule to this Measure.

3.—(1) Subject to the provisions of this Measure, the pensions authority shall, in any case where a pension has been allowed under the Resignation Acts as amended by this Measure of less than £175, pay to the retired older incumbent in receipt of such pension such an annual sum as will make up such pension to—

Pensions
paid partly
or wholly by
pensions
authority.

(i) £175, where the annual value of the benefice resigned by him is £400 or more;

- (ii) £150, where such annual value is £310 or less ;
- (iii) £150, with a further addition of £5 for every complete £20 by which such annual value exceeds £310, where such annual value exceeds £310 but is less than £400 ;

and such pension and such annual sum shall together constitute an older incumbent's pension for the purposes of this Measure.

(2) The pensions authority shall also, but subject to the provisions of this Measure, pay an older incumbent's pension of £150 to every retired older incumbent who retires from a benefice on or after the appointed day under such circumstances that, in the opinion of the pensions authority, he would upon retirement have entered upon the receipt of an older incumbent's pension provided wholly or partly under the Resignation Acts as amended by this Measure, but for any one or more of the following facts (that is to say) :—

- (i) the fact that he had not held his benefice for seven years continuously before retirement ;
- (ii) the fact that the annual value of such benefice did not, in the opinion of the pensions authority, exceed £300 ;
- (iii) the fact that such benefice was already subject to a pension under the Resignation Acts or to a charge under section twenty-seven of the Clergy Pensions Measure, 1926 ; or
- (iv) the fact that such benefice was in the Isle of Man :

Provided that—

- (a) in order to qualify for an older incumbent's pension of £150 payable under this subsection an older incumbent must either have served as a clerk in Holy Orders for at least twenty years, or have held his benefice for seven years continuously before retirement ;
- (b) in computing service for the purposes of this subsection any period of ecclesiastical service under any civil or other authority upon the termination of which the older incumbent concerned entered upon the receipt of a pension granted in respect of such service shall be excluded ; and

- (c) paragraphs (i) and (ii) of subsection (1) of section two of this Measure shall apply with the necessary modifications to an older incumbent who desires to retire from his benefice under the provisions of this subsection.

• (3) The pensions authority shall also, but subject to the provisions of this Measure, pay an older incumbent's pension of £150 to every retired older incumbent who—

- (i) being an archdeacon is not the holder of the benefice or of a canonry within the meaning of the Deans and Canons Resignation Act, 1872; 35 & 36 Vict.
c. 8.
- (ii) represents to the bishop that he desires to retire on the ground that he is incapacitated by permanent mental or bodily infirmity or by old age, from the due performance of his duties;
- (iii) receives the consent in writing of the bishop to his retirement; and
- (iv) retires on or after the appointed day.

4.—(1) In any case where an older incumbent—

- (i) retired from a benefice after the thirty-first day of December, nineteen hundred and twenty-eight, but before the appointed day;
- (ii) would, in the opinion of the pensions authority, have been entitled, if he had retired on or after the appointed day, to an older incumbent's pension; and
- (iii) before the expiration of a period of two years commencing on the appointed day makes an application to the pensions authority in such form as the pensions authority may require;

Cases of retirement between 31st December, 1928, and the appointed day.

the pensions authority shall, subject to the provisions of this Measure, pay to him as from the date on which he vacated his benefice and during the remainder of his life—

- (a) if he is in receipt of a pension under the Resignation Acts of less than £175 or of a non-contributing pensioner's pension under the Clergy Pensions Measures, 1926 to 1928, such annual sum as will make up such pension or the aggregate of such pensions to the amount of the older incumbent's pension which he would have

received if he had retired on or after the appointed day; or

- (b) if he is not in receipt of any pension under the said Acts or Measures, the annual sum of £150 :

Provided that in any case where the pensions authority is of opinion that a pension under the Resignation Acts would have been granted to such older incumbent if he had applied for the same, the pensions authority shall have power to reduce the said annual sum of £150 by such amount as the pensions authority shall think just.

(2) The provisions of this Measure relating to older incumbents' pensions shall so far as the same are applicable apply to every annual sum paid by the pensions authority under this section.

(3) For the purposes of this section—

- (i) a clerk who retires from his benefice under the Resignation Acts shall be deemed to have retired on the day upon which the declaration of the bishop declaring such benefice void is signed;
- (ii) a clerk who retires from his benefice otherwise than under the Resignation Acts shall be deemed to have retired on the date on which he vacated his benefice.

(4) In any case where—

- (i) an older incumbent retired from a benefice after the thirty-first day of December, nineteen hundred and twenty-eight, but before the appointed day;
- (ii) such older incumbent upon his retirement entered upon the receipt of a pension under the Resignation Acts which is more than the excess of the annual value of the benefice resigned over £300; and
- (iii) the bishop of the diocese concerned applies to the pensions authority for a grant under this subsection;

the pensions authority shall so long as such pension continues pay to the incumbent for the time being of

the benefice resigned such an annual sum in augmentation of the income thereof as will make up such income after deducting the pension charged thereon to £300.

5. In any case where the pensions authority, after consulting with the Ecclesiastical Commissioners, is of opinion that the charge imposed upon any benefice (including a united benefice) by this Measure ought having regard to the circumstances of such benefice to be reduced, the pensions authority shall have power, with the consent of the Ecclesiastical Commissioners, to reduce such charge by such amount as it may deem expedient, and to make good the amount of the reduction by making the necessary annual payments to the retired older incumbent concerned.

Power to
reduce
charges on
benefices.

6. In any case where—

Increased
pensions.

- (i) an older incumbent's pension would be less than the aggregate of the pensions which, if this Measure had not been passed, might have been allowed to the older incumbent concerned under the Resignation Acts and the provisions of the Clergy Pensions Measures, 1926 to 1928, relating to non-contributing pensioners; and
- (ii) such older incumbent at any time either before he has vacated his benefice or before the expiration of one month after he has vacated his benefice applies to the pensions authority for an increased pension;

the pensions authority shall have power to increase such older incumbent's pension by such annual amount as the pensions authority, with the concurrence of the Ecclesiastical Commissioners, may in the circumstances of the case think fit.

7.—(1) An older incumbent or a retired clerk in receipt of an older incumbent's pension may by notice in writing given to the pensions authority renounce any right or claim to receive such portion of any older incumbent's pension to which he might otherwise be entitled as shall be stated in such notice.

Reduced
pensions.

(2) In any case where an older incumbent's pension is reduced by a notice under this section, and such older

incumbent's pension is provided partly under the Resignation Acts as amended by this Measure and partly by the pensions authority, the reduction shall operate primarily as a reduction of the charge on the benefice concerned, and the annual sum to be paid by the pensions authority shall be adjusted in such manner as will give effect to this subsection.

(3) A notice given under this section shall—

- (i) be irrevocable to such extent, if any, as it operates as a reduction of the charge on the benefice concerned; and
- (ii) subject as aforesaid, be revocable only and to such extent as the pensions authority may permit.

Powers of
pensions
authority
in certain
cases.

8.—(1) In any case where an older incumbent is desirous of retiring from his benefice under the provisions of the Resignation Acts as amended by this Measure, and in the opinion of the pensions authority the older incumbent's pension of such incumbent would be provided partly under the Resignation Acts as so amended and partly by the pensions authority, the following provisions shall have effect (that is to say):—

- (i) The pensions authority shall have power to certify in writing whether such incumbent is or is not incapacitated by permanent mental or bodily infirmity, or by old age, from the due performance of his duties;
- (ii) In any case where the pensions authority shall have certified that an incumbent is not so incapacitated, such incumbent may within fourteen days after the certificate has been communicated to him require that the matter be referred to a board of medical referees appointed in manner laid down by this section, and such board shall have power either to confirm the certificate of the pensions authority or to set it aside and to certify that the incumbent is incapacitated;
- (iii) A certificate of the pensions authority given under this section and not set aside by a medical board, and a certificate of a medical board given under this section, shall respectively be final and conclusive for all the purposes of the Resignation

Acts as amended by this Measure and binding upon commissioners appointed under the said Acts;

- (iv) If the pensions authority or a medical board shall have certified an incumbent to be incapacitated, the pensions authority shall also have power, if in the opinion of the pensions authority the circumstances of the case are such as to entitle such incumbent to an older incumbent's pension, with the consent of the bishop and the patron, to certify to the bishop all such matters and things as would be certified in a return to a commission issued under the Resignation Acts as amended by this Measure, and any such certificate shall for the purposes of those Acts as so amended be treated as if it were a return to a commission issued thereunder, and no commission shall be required.

(2) A board of medical referees appointed for the purposes of this section shall consist of a referee appointed by the bishop and a referee appointed by the pensions authority, together with a third referee selected by the above-mentioned referees before they begin to act in any matter.

(3) Such third referee shall not take any part in the proceedings of the board unless there shall be a difference between the two other referees, in which case his decision shall be final and conclusive.

(4) The Arbitration Act, 1889, shall not apply to a reference to a board of medical referees under this section, 52 & 53 Vict. c. 49.

9. If on the appointed day a commission has been issued under the Resignation Acts in respect of a benefice, but no declaration declaring such benefice void has been signed by the bishop— Pending commissions.

- (i) no further proceedings shall be taken in pursuance of the commission if the annual value of the benefice does not, in the opinion of the pensions authority, exceed £300; and
- (ii) in every other case the proceedings consequential upon the issue of the commission, so far as the same are incomplete, shall be such as will give effect to the provisions of this Measure.

Conditions
for receipt
of and
payment
and appli-
cation of
pensions.

10.—(1) The provisions of the Clergy Pensions Measure, 1926, as amended by the Clergy Pensions (Amendment) Measure, 1928, set out and adapted in the Second Schedule to this Measure, shall apply as if incorporated in this Measure.

(2) 'The pensions authority shall have power by order under its common seal to direct the suspension for any period of an older incumbent's pension and of any charge upon the revenues of a benefice by means whereof such pension is wholly or partly provided in any case where the conditions mentioned in the Second Schedule to this Measure are not for the time being fulfilled.

Non-con-
tributing
pensioners
under Clergy
Pensions
Measures,
1926 and
1928.

11.—(1) After the passing of this Measure the provisions of the Clergy Pensions Measures, 1926 to 1928, relating to non-contributing pensioners shall apply only to unbeneficed clerks.

(2) Subsection (5) of section six of the Clergy Pensions Measure, 1926, is hereby repealed.

Pluralities.

12. The amount of the older incumbent's pension of an incumbent who holds benefices in plurality shall be ascertained by—

- (i) treating such benefices as separate benefices for the purpose of ascertaining whether the same are respectively chargeable under the Resignation Acts as amended by the Measure;
- (ii) treating any benefices which having regard to the last paragraph are chargeable as aforesaid as one benefice for the purpose of ascertaining—
 - (a) the total amount to be charged on such benefices (which total amount shall be charged rateably thereon); and
 - (b) the portion (if any) of the older incumbent's pension concerned to be provided by the pensions authority.

Financial
provisions.

13.—(1) All moneys payable by the pensions authority under this Measure shall be paid out of—

- (i) so much of the annual sums paid and payable to the pensions authority under section nineteen of the Clergy Pensions Measure, 1926, as the Ecclesiastical Commissioners and the pensions authority shall agree to be available for the

purpose (in this section referred to as "the fund already available"); and

- (ii) such further sums as may be paid to the pensions authority under the next succeeding subsection of this section.

(2) The Ecclesiastical Commissioners shall out of their common fund pay to the pensions authority such further annual or other periodical sums as the Ecclesiastical Commissioners and the pensions authority may agree to be sufficient, when added to the fund already available, to provide for all payments to be made by the pensions authority under this Measure.

(3) The Ecclesiastical Commissioners and the pensions authority shall respectively have power to make, and from time to time by mutual consent to revise or vary, any agreement required for carrying this section into effect.

(4) For the purposes of this section the expenses of the pensions authority incurred in administering older incumbents' pensions shall be deemed to be payments made under this Measure.

(5) Nothing in this section shall apply to any moneys payable by the pensions authority as trustee of any charge upon the revenues of a benefice.

14. In this Measure—

the expression "benefice" has the same meaning as in the Resignation Acts;

the expression "annual value," when used with reference to a benefice, means the annual value of such benefice for the purposes of the Resignation Acts as set out in the Fourth Schedule to this Measure.

Interpreta-
tion.

15.—(1) This Measure shall come into force on the appointed day.

Commence-
ment.

(2) The appointed day shall be such day subsequent to the day on which this Measure receives the Royal Assent as the Archbishops of Canterbury and York, by writing under their respective hands and archiepiscopal seals, shall jointly determine.

(3) The determination of the appointed day under this section shall be notified in the "London Gazette."

Short title. **16.** This Measure may be cited as the Clergy Pensions (Older Incumbents) Measure, 1930.

Extent. **17.**—(1) Subject to the provisions of this section, this Measure shall extend to the whole of the Provinces of Canterbury and York including the Isle of Man but not including the Channel Islands.

(2) The provisions of this Measure relating exclusively to older incumbents' pensions provided wholly or partly under the Resignation Acts as amended by this Measure shall not apply to the Isle of Man.

S C H E D U L E S.

Section 2.

THE FIRST SCHEDULE.

PART I.

To the Church of England Pensions Board.

I, _____ being now and having been
for the last _____ years continuously incumbent of
_____ in the diocese of _____ (*and
having served as a clerk in Holy Orders for not less than
20 years), hereby represent that I, finding myself incapacitated
by { permanent bodily infirmity } from the due performance of
 { permanent mental infirmity }
 { old age }
my duties, am desirous of resigning the said benefice on being
allowed to receive an older incumbent's pension out of the
revenues of the said benefice or otherwise.

And I declare that I make this application with the consent
in writing of the bishop of the diocese of _____

(* If the applicant has been continuously for seven years or more
incumbent of the benefice which he holds at the date of application these
words should be struck out.)

and that the information given herein is, to the best of my knowledge and belief, correct.

Dated this day of 19

Signature of applicant

Address

1. Date of birth
2. Date of ordination
- (*3. Particulars of service, giving dates
4. Nature of disability

(A medical certificate on the form supplied should accompany the application.)

PART II.

WHEREAS on the _____ day of _____, in the year of our Lord, 19____, a commission was issued by us, the Bishop of _____, under the provisions of the Incumbents Resignation Acts, 1871 and 1887, as amended by the Clergy Pensions (Older Incumbents) Measure, 1930, on the representation of the Rev. _____, incumbent of _____, within the diocese aforesaid, and in their return thereto the Commissioners stated that in their opinion the resignation of the said Rev. _____ was expedient, ~~~~~

[illegible]

and that pursuant to the provisions of the said Measure the sum of _____ pounds per annum out of the revenues of the said benefice should be allowed to the said Rev. _____ on his retirement therefrom, such sum being the whole [or part] of the older incumbent's pension of the said Rev. _____ provided for by the said Measure.

(* If the applicant has been continuously for seven years or more incumbent of the benefice which he holds at the date of application these words should be struck out.)

And whereas the patron has consented or not refused his consent to such resignation [or the Archbishop has determined that such resignation shall be accepted];

WE, _____, by Divine permission Bishop of _____, do declare the said benefice void of the person of the said Rev. _____ to all intents and purposes of the law, on and after the _____ day of _____ subject nevertheless to the payment out of the revenues thereof to the Church of England Pensions Board in trust for the said Rev. _____ of the yearly sum of _____ pounds, such sum to be payable (subject to any necessary apportionment) by equal quarterly instalments on the 31st March, 30th June, 30th September and 31st December in each year (the first of such instalments to be paid on the _____ 19—), and (subject to the provisions of the said Acts and Measure) to continue payable during the life of the said Rev. _____.

As witness our hand this _____ day of _____ in the year of our Lord, 19—.

Witness to the signature of the Bishop :

Section 10.

THE SECOND SCHEDULE.

ADAPTATION OF SECTION 5 (AS AMENDED BY SECTION 4 OF THE CLERGY PENSIONS (AMENDMENT) MEASURE, 1928), SECTION 6 (1) (2) AND (3) AND SECTION 26 OF THE CLERGY PENSIONS MEASURE, 1926.

Conditions
for the
receipt of
pensions.

5. Every recipient of an older incumbent's pension (in this Schedule referred to as a pensioner) must satisfy the following conditions (that is to say) :—

(i) He must continue in retirement :

Provided that no clerk—

(a) shall be deemed to have retired or to be in retirement if and so long as he holds any ecclesiastical office or preferment or curacy, provided that the holding of an honorary canonry or a non-residentiary prebend or a cathedral dignity or office with a stipend not exceeding twenty pounds a year or a curacy with a stipend not exceeding a like amount shall not be deemed the holding of an ecclesiastical office or preferment or curacy ;

(b) shall be deemed to have retired or to be in retirement if and so long as he undertakes ecclesiastical duty for remuneration otherwise than with the

sanction given expressly for the purposes of this provision of the bishop of the diocese in which the duty is undertaken ;

- (iii) He must not have resigned his pension ;
- (iv) He must not have executed any deed of relinquishment under the Clerical Disabilities Act, 1870 ;
- (v) He must continue to be a member of the Church of England, and must not belong to any religious body which is not in communion with the Church of England ;
- (vi) He must furnish to the pensions authority such evidence as such authority may from time to time require of his right to receive his pension ;
- (viii) He must not under ecclesiastical law or the provisions of any statute or Measure for the time being in force be incapable of holding preferment in the Church ;
- (ix) He must not have incurred a forfeiture or a suspension of his pension.

33 & 34 Vict.
c. 91.

6.—(1) Every older incumbent's pension shall be by way of annuity accruing from day to day and payable (subject to any necessary apportionment) by equal quarterly instalments on the thirty-first day of March, the thirtieth day of June, the thirtieth day of September, and the thirty-first day of December in each year.

Payment
and appli-
cation of
pensions.

(2) An older incumbent's pension shall be incapable of being assigned, charged, or anticipated, and every purported assignment of or charge upon the same shall be void, and the same shall not pass to any trustee in bankruptcy of the pensioner.

(3) An older incumbent's pension may in any case where a pensioner becomes of unsound mind, whether so found by inquisition or not, or is disabled by mental or physical incapacity from managing his own affairs, at the discretion of the pensions authority, be paid or applied by or under the direction of such authority to or for the maintenance, benefit or support of any one or more of the following persons (that is to say) :—the pensioner, his wife, his children or remoter issue, their husbands and wives, and any other persons who, in the opinion of the pensions authority, are normally dependent on the pensioner.

26. Every pensioner shall remain subject to ecclesiastical discipline and to the provisions of any statute or measure for the time being in force relating to the discipline of the clergy, and in applying any such statute or measure to a pensioner the following provisions shall have effect (that is to say) :—

Eccle-
siastical
discipline.

- (i) in any case where a bishop has power to declare a preferment held in his diocese to be vacant on the ground of

the criminal conviction of the holder of such preferment or on any other ground, he shall have power on the same grounds to declare the older incumbent's pension of a pensioner to be forfeited ;

- (ii) in any case where a court has jurisdiction to pronounce on any ground a sentence of deprivation of or suspension from preferment, such court shall have jurisdiction to pronounce upon the same ground a sentence of forfeiture or suspension of an older incumbent's pension ; and
- (iii) a pensioner shall be deemed to hold preferment in any place where he temporarily or permanently resides.

Section 2.

THE THIRD SCHEDULE.

Provisions of the Incumbents Resignation Act, 1871, amended or repealed.

Amendment or Repeal.

- Section 7 - - After the word " churchwardens " in all places where it occurs there shall be inserted the words " and the Parochial Church Council." After the words " sending of such notices " there shall be inserted the words " or until " all the Commissioners shall have been " nominated, whichever shall first happen."
- Section 8 - - The words added at the end of the section by the Incumbents Resignation Act, 1871, Amendment Act, 1887, shall be repealed.
- Section 9 - - There shall be substituted for the words " and " the times of payment not being oftener " than twice a year " the words " which " pension shall accrue from day to day " and be payable (subject to any necessary " apportionment) by equal quarterly instalments, on the thirty-first day of March, " the thirtieth day of June, the thirtieth " day of September, and the thirty-first " day of December in each year."
- Sections 13 and 15 These sections shall be repealed.
- Section 18 - - After the word " inquisition " there shall be inserted the words " or a person affected " by the provisions of section 116 of the " Lunacy Act, 1890, and for whose benefit " a receiver has been appointed." At the end of the section there shall be inserted the words " or such receiver."

THE FOURTH SCHEDULE.

Section 14.

INCUMBENTS RESIGNATION ACT, 1871, AMENDMENT ACT, 1887.

SECTION 5.

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The annual value of a benefice for the purposes of this Act shall be the net annual value exclusive of the parsonage, vicarage, or other place of residence of the incumbent, after deducting all rates, taxes and charges assessed upon and payable out of the benefice, which charges shall include the salary of any curate who is compulsorily employed, and any annual payments in respect of any terminable mortgage having at the time of the sitting of the said Commission more than two years to run.

No. 7.

A MEASURE passed by the National Assembly
 of the Church of England.

To amend the law relating to the holding of benefices in plurality, and for that purpose to extend the powers exercisable under the Union of Benefices Measure, 1923.

[1st August 1930.]

1. Section four of the Pluralities Act, 1838 (so far as unrepealed) and section fourteen of the Pluralities Acts Amendment Act, 1885, shall respectively cease to have effect, and, for the purposes of the Pluralities Act, 1838, the conditions as to distance and annual value which must be satisfied in order that two benefices may be held in plurality pursuant to such licence or dispensation

Conditions applicable to the holding of benefices in plurality.
 1 & 2 Vict.
 c. 106.
 48 & 49 Vict.
 c. 54.